

5	30-2023-01354850 Butler vs. American Vision Windows, Inc.	Plaintiffs Adolfo Rojas Sr. and Jesse Bryan Butler’s (collectively, “Plaintiffs”) Motion for Final Approval of Class Action and PAGA Settlement is GRANTED IN PART. Enhancement awards of \$7,500.00 to Plaintiff Adolfo Rojas Sr. and \$5,000 to Plaintiff Jesse Bryan Butler are sufficient and proper for a class and settlement of this size, and based on each plaintiff’s contribution to the case. The court also finds that an attorneys’ fee award totaling \$642,345.00 or 30% of the Gross Settlement Amount, which constitutes a 1.45 multiplier of the lodestar amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved. The court concludes that the \$2,141,150.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$642,345.00 to plaintiffs’ counsel (50% to Bibiyan Law Group, P.C. and 50% to D. Law, Inc.) for plaintiffs’ attorneys’ fees, reduced from the \$713,716.67 requested; • \$29,218.50 to plaintiffs’ counsel (\$10,648.58 for Bibiyan Law Group, P.C. and \$18,569.92 for D. Law, Inc.) for plaintiffs’ litigation costs, as requested; • \$12,500.00 to Plaintiffs (\$7,500.00 to Plaintiff Rojas and \$5,000.00 to Plaintiff Butler) as enhancement awards, reduced from the \$25,000.00 requested; • \$12,556.00 to Rust Consulting, Inc., the settlement administrator, as requested; and • \$37,500.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is \$1,407,030.50. The Final Accounting hearing is set for June 14, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number
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		and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiffs shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
6	30-2024-01426932 Petty vs. Renewal By Andersen LLC	The tentative ruling is to continue the hearing on Plaintiff Chandon Petty’s (“Plaintiff”) Motion for Approval of Settlement Under Private Attorneys General Act (“PAGA”) to December 21, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved and thus a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on the PAGA Period the parties are using. The following phrases must be removed from the release described in the settlement agreement: • “that accrue through the date the Court enters its order approving this Settlement” (Settlement § A(23) [the release period should match the PAGA Period that ends on August 29, 2025.] • “and (D) all claims that Plaintiff and/or the PAGA Members may have against the Released Parties relating to the payment, taxation, and allocation of attorneys’ fees and costs to Plaintiffs Counsel pursuant to this Settlement